

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Marilyn Nyanteh	Team: Team # 8	CCRB Case #: 200609676	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 07/24/2006 11:55 PM	Location of Incident: Giffords Lane by Amboy Road	18 Mo. SOL 1/24/2008	Precinct: 122		
Date/Time CV Reported Tue, 07/25/2006 9:47 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/25/2006 9:47 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Metsopulos	05821	937101	122 PCT
2. POM Michael Burdick	10069	929798	122 PCT
3. SGT Joseph Memoly	01826	903173	122 PCT
4. POM Malcolm Danziger	17860	917500	122 DET
5. Officers			122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Joseph Memoly	Abuse: Sgt. Joseph Memoly stopped § 87(2)(b)	A . Exonerated
B . POM Joseph Metsopulos	Abuse: PO Joseph Metsopulos stopped § 87(2)(b)	B . Exonerated
C . POM Michael Burdick	Abuse: PO Michael Burdick stopped § 87(2)(b)	C . Exonerated
D . POM Malcolm Danziger	Abuse: PO Malcolm Danziger stopped § 87(2)(b)	D . Exonerated
E . Officers	Abuse: Officers frisked § 87(2)(b)	E . Exonerated
F . Officers	Abuse: Officers searched § 87(2)(b)	F . Exonerated
G . POM Joseph Metsopulos	Abuse: PO Joseph Metsopulos threatened to arrest § 87(2)(b)	G . Unsubstantiated

Synopsis

At approximately 11:55pm on July 24, 2006, Sgt. Joseph Memoly, PO Joseph Metsopulos, PO Michael Burdick and PO Malcolm Danziger of the 122nd Precinct stopped § 87(2)(b) near the vicinity of 26 Giffords Lane in Staten Island (**Allegations A through D**). Prior to the stop, the officers had observed § 87(2)(b) with a zip-locked bag containing a white substance assumed to be cocaine. When the officers approached § 87(2)(b) he ran into the Talk of the Town Bar near the incident location. § 87(2)(b)'s father, § 87(2)(b) and uncle, § 87(2)(b) were inside of the bar. § 87(2)(b) and § 87(2)(b) observed the officers bring § 87(2)(b) out of the bar. Officers allegedly frisked and searched § 87(2)(b) before obtaining his identification (**Allegations E and F**). § 87(2)(b) alleged that one of the officers told him to "Get out the way or I'll lock you up," during the incident (**Allegation G**).

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) Therefore it is recommended that **Allegations A through F** be closed as exonerated. § 87(2)(g)
§ 87(2)(b) Therefore it is recommended that **Allegation G** be closed as unsubstantiated.
§ 87(2)(b) was offered mediation during a phone statement on August 7, 2006. § 87(2)(b) was offered the option of mediation during his official statement on August 8, 2006. Both civilians rejected mediation.

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b) white male who is § 87(2)(b). He is a distribution driver for the § 87(2)(b). § 87(2)(b) contacted the CCRB by phone and filed his complaint on July 25, 2006. He provided a phone statement on August 1, 2006 (encl. 7a). He provided an official statement on August 8, 2006 (encl. 8a-c). § 87(2)(g)
§ 87(2)(b) is § 87(2)(b)'s father. § 87(2)(b) is § 87(2)(b)'s brother. On July 24, 2006, § 87(2)(b), § 87(2)(b) and § 87(2)(b) had all gone to a Met's game. After the game, § 87(2)(b) and § 87(2)(b) drove to Staten Island to take § 87(2)(b) home. The men decided to make a brief stop at the Talk of the Town Bar near Giffords Lane and Amboy Road before heading to § 87(2)(b)'s home. Near 11:55pm, § 87(2)(b) began to feel heartburn. § 87(2)(b) had a zip-locked bag of Tums in the trunk of the car. § 87(2)(b) went outside to take some of the Tums tablets. § 87(2)(b) and § 87(2)(b) did not go outside with § 87(2)(b). From what § 87(2)(b) later told § 87(2)(b) as § 87(2)(b) walked from his car back to the bar, he saw four men staring at him from a vehicle. One of the men yelled, "Come here," and § 87(2)(b) then ran into the bar (**Allegations A through D**). § 87(2)(b) witnessed § 87(2)(b) run into the bar and fall on the floor. Officers pulled § 87(2)(b) outside. § 87(2)(b) stated that all of the officers were young white males. He could only describe two of the officers. One of the officers was a "tough-looking" white male who was 5'7" (**this officer was identified as PO Joseph Metsopulos**). The other officer was big and blond (**this officer was identified through investigation as PO Michael Burdick**). § 87(2)(b) tried to walk outside to see what was happening to his son. PO Metsopulos blocked § 87(2)(b) from leaving the bar so he did not see a frisk or search occur. PO Metsopulos eventually allowed § 87(2)(b) to exit the bar after the officers outside realized § 87(2)(b) did not possess drugs. Two officers apologized for the incident. From what § 87(2)(b) later learned, the officers searched § 87(2)(b)'s person (**Allegations E and F**). § 87(2)(b) also allowed the officers to look into his vehicle and obtain the bag of Tums. When the officers realized § 87(2)(b) had Tums in his possession, they let him go.

Results of Investigation

§ 87(2)(b)
§ 87(2)(b) provided a phone statement on August 7, 2006 (encl. 6a). § 87(2)(b) would not come to the CCRB for an official statement due to his work hours. § 87(2)(b) indicated that he felt the incident to be a "mistake of both sides" and was unsure if he wanted an investigation to occur. He stated that he was participating in the complaint mostly "for his father."

§ 87(2)(b) is a § 87(2)(b) white male who is § 87(2)(b). § 87(2)(g)

§ 87(2)(b) had been seated in his vehicle with his door open when he noticed four men in plain clothes staring at him from an unmarked car in front of him. The car stopped in front of him and the men ran towards him (**Allegations A through D**). The men did not identify themselves as officers. § 87(2)(b) did not know who these men were, so § 87(2)(b) ran into the bar. In the bar, § 87(2)(b) tripped over a stool and fell to the ground. The men then announced that they were police officers. The officers brought § 87(2)(b) out of the bar. PO1 was a white male with black hair who was 5'8" and in his mid-thirties (**identified through investigation as PO Joseph Metsopulos**). PO2 was a white male with blond hair who was 6'3" and in his thirties (**identified through investigation as PO Michael Burdick**). PO3 was a white male who is 5'10" had brownish hair and a goatee (**identified through investigation as Sgt. Joseph Memoly**). PO4 was a white male who was 5'10" who seemed older than the other officers and appeared to be in his late-thirties (**identified through investigation as PO Malcolm Danziger**).

Sgt. Memoly asked § 87(2)(b) if he had drugs or sharp objects in his pockets. Sgt. Memoly then patted § 87(2)(b) down (**Allegation E**). Sgt. Memoly asked § 87(2)(b) if he had identification. Sgt. Memoly then went into § 87(2)(b)'s pocket and took his identification out (**Allegation F**). § 87(2)(b) told the officers go into the vehicle and get the zip-locked bag of Tums. When the officers realized that § 87(2)(b) had Tums, they asked him why he ran away. § 87(2)(b) explained that he had not realized that the men were police officers. The officers apologized for the incident and allowed § 87(2)(b) to go.

§ 87(2)(b) was contacted by phone on November 3, 2006 (encl 9a). § 87(2)(b) stated that he and § 87(2)(b) were inside of the bar when § 87(2)(b) ran inside with two men behind him. The men handcuffed § 87(2)(b) and dragged him outside. § 87(2)(b) calmed § 87(2)(b) down and then walked outside. There were three officers altogether. § 87(2)(b) did not recall what two of the officers looked like. He only recalled that one of the officers was a black haired white officer who was 5'4" (**identified by investigation as PO Metsopulos**). PO Metsopulos stood in front of § 87(2)(b) and stated "Get out of the way or I'll lock you up too" (**Allegation G**). § 87(2)(b) saw two officers patting down § 87(2)(b) against a wall. § 87(2)(b) saw the officers go into § 87(2)(b)'s pockets and obtain his identification. § 87(2)(b) did not recall what these officers looked like. Once the situation ended, the two unidentified officers apologized.

Officer Statements

PO Joseph Metsopulos

PO Joseph Metsopulos is a § 87(2)(b) white male who is § 87(2)(b). He has black hair and black eyes. On July 24, 2006, PO Metsopulos worked an overtime shift that went from 9:30pm to 2:05am on July 25, 2006. PO Metsopulos was working with PO Burdick and Sgt. Memoly and assigned to 122nd Precinct Anti-Crime. He was in plain-clothes and assigned to an unmarked vehicle. PO Metsopulos had no memobook entries regarding this incident. The investigation identified PO Metsopulos from the stop and frisk report he prepared for § 87(2)(b) during the incident.

The handwritten stop and frisk report (encl. 11a-b) stated that § 87(2)(b) was stopped at the corner of 26 Giffords Lane at 12:04am on July 25, 2006. § 87(2)(b) had been observed for 15 seconds prior to the stop. The stop lasted 5 minutes. § 87(2)(b) was stopped for suspected criminal possession of a controlled substance. The circumstances leading to the stop were actions indicative of engaging in drug transaction and furtive movement. The additional factor was changing direction at the sight of the officers or flight. § 87(2)(b) was not searched, and no weapons or contraband were found. § 87(2)(b) was not arrested or issued a summons. The officers were not in uniform, and were identified by shield. The computer generated stop and frisk report (encl. 12a) differed as it listed that § 87(2)(b) had been observed for 1 minute prior to the stop.

PO Metsopulos appeared at the CCRB on November 14, 2006 (encl. 13a-b). PO Metsopulos was provided with details regarding the incident and shown a copy of the Stop and Frisk report he prepared. However, PO Metsopulos did not recall the incident.

PO Michael Burdick

PO Michael Burdick is a § 87(2)(b) white male who is § 87(2)(b). He has blond hair and blue eyes. On July 24, 2006, he was assigned to Anti-crime and working with PO Metsopolos. He was in plain-clothes and assigned to an unmarked black vehicle. PO Burdick had no memobook entries regarding this incident. The investigation identified PO Burdick from the official statement of PO Metsopolos, who identified PO Burdick as his partner on the date of this incident.

PO Burdick appeared at the CCRB on December 12, 2006 (encl. 16a-b). PO Burdick did not have his memobook during his interview. PO Burdick was provided with details regarding this incident and shown the stop and frisk report regarding this incident. He had no recollection of this incident.

Sgt. Joseph Memoly

Sgt. Joseph Memoly is a § 87(2)(b) white male who is § 87(2)(b). He has brown hair and black eyes. At the time he was interviewed at the CCRB, he did not have a goatee. When asked if any white male officers with goatees who were 5'10" with brownish hair worked with him on the date of this incident, he stated that he only recall himself fitting that description. On July 24, 2006, Sgt. Memoly was assigned as Anti-crime Supervisor. He worked with PO Metsopolos and PO Burdick. He did not recall working with other officers on this date. Sgt. Memoly was in plain-clothes and assigned to a black four-door Crown Victoria. He had no memobook entries regarding this incident.

Sgt. Memoly provided an official statement on January 16, 2007 (encl. 19a-b). Sgt. Memoly did not have his memobook during his CCRB statement. Giffords Lane is a drug-prone location where officers have made drug related arrests in the past. While traveling down Giffords Lane, the officers observed § 87(2)(b) standing by the passenger seat of a parked vehicle with its door open. § 87(2)(b) had a zip-locked bag by his face and mouth and one of his hands was in close proximity of his nose. It appeared that the male had just snorted from a bag of cocaine. Because of what was observed, it was an "obvious stop" and no one needed to make the decision for the stop to occur. The officers pulled about a half-car length past § 87(2)(b)'s vehicle. The officers all exited and put their lights on. At that point, § 87(2)(b) ran into the Talk of the Town Bar and PO Burdick and PO Metsopolos ran after him. Sgt. Memoly stayed behind to retrieve the zip-locked bag. PO Burdick and PO Metsopolos brought § 87(2)(b) out of the bar. Either PO Burdick or PO Metsopolos conducted a frisk at that point. Sgt. Memoly did not recall who did not frisk, and he did not have to approve it. Sgt. Memoly described the frisk as "automatically done by the officers." He stated that it was done because the officers wanted to check for weapons and feared for their safety. Sgt. Memoly did not recall if § 87(2)(b) was searched. Sgt. Memoly did not recall if the officers obtained § 87(2)(b)'s identification during the stop. PO Burdick and PO Metsopolos asked Sgt. Memoly what the zip-locked bag contained. When Sgt. Memoly opened the bag, he realized that it contained only Tums. § 87(2)(b) walked out of the bar to see what was occurring. Both § 87(2)(b) and § 87(2)(b) appeared very intoxicated, since their speech was slurred, they appeared unbalanced, and they had just walked out of a bar. Both appeared upset because § 87(2)(b) had been stopped. Sgt. Memoly did not recall other family members being present during the incident. The officers explained that § 87(2)(b) had been stopped because they had thought he had drugs in his possession and because he had run from them. § 87(2)(b) did indicate that he had been unaware that the men had been police officers. Sgt. Memoly did not recall any of the officers threatening to arrest § 87(2)(b) during the incident.

PO Malcolm Danziger

PO Malcolm Danziger is a § 87(2)(b) white male who is § 87(2)(b). He has grey, salt-and-pepper hair and green eyes. He did not have a goatee at the time of his interview. PO Danziger normally worked with the 122nd Precinct Detective Squad, but on July 24, 2006, he was assigned to 122nd Precinct Anti-Crime. He was in plain-clothes and assigned to an unmarked vehicle. He worked with PO Burdick and Sgt. Memoly. He did not recall working with other officers. He had no memobook entries regarding this incident. The investigation identified PO Danziger from Sgt. Memoly's memobook, which identified PO Danziger as working with the Anti-Crime team on the date of incident.

PO Danziger appeared at the CCRB on May 1, 2007 (encl. 22a-b). On July 24, 2006, PO Danziger recalled that Sgt. Memoly and PO Burdick "spoke" to § 87(2)(b) in front of the Talk of the Town bar. PO Danziger recalled that some point, § 87(2)(b) ran into the bar. PO Danziger did not know why § 87(2)(b) was stopped. PO Danziger did not recall what point § 87(2)(b) ran into the bar. PO Danziger did not know if § 87(2)(b)'s family members had been present during the

stop. PO Danziger remained in the patrol car for the duration of the stop and did not participate in frisking or searching § 87(2)(b) PO Danziger did not know if a frisk or search occurred during the incident because he had been inside of the patrol car.

122nd Precinct Roll Call, Tour 3

On July 24, 2006, Sgt. Memoly was the special projects supervisor. PO Burdick was assigned to Anti-Crime. PO Danziger was Special Operations Coordinator. PO Metsopulos was not listed on roll call for this date. [Encl. 24a-k]

CCRB History of Civilians Involved

The civilians involved in this complaint have no other CCRB complaints on their record.

§ 87(2)(b)

CCRB History of Subject Officers

Sgt. Memoly has had one substantiated CCRB allegation in his 13 years of tenure. In CCRB 200300872, Sgt. Memoly received instructions for supervising the frisk of a civilian. PO Burdick has had one substantiated CCRB allegation in his 5 years of tenure. In CCRB 200504987, PO Burdick received instructions for refusing to provide his name and shield number. PO Metsopulos has had no substantiated CCRB allegations in his 10 years of tenure. PO Danziger has had no substantiated CCRB allegations in his 2 years of tenure.

Conclusions and Recommendations

Officer Identification

Pedigree of Officers Involved in Incident

Officers Involved	Hair color	Height	Age
PO Metsopulos	Black Hair	5'7"	25
PO Burdick	Blond Hair	6'1"	30
Sgt. Memoly	Brown Hair	5'10"	36
PO Danziger	Salt-and Pepper Grey	5'10"	36

§ 87(2)(b) stated that four officers ran after him during the incident. PO Metsopulos, PO Burdick, Sgt. Memoly and PO Danziger were the four officers working as the anti-crime team on this date. Sgt. Memoly acknowledged that his unit interacted with § 87(2)(b) and PO Metsopulos completed the stop and frisk report regarding the incident § 87(2)(g)

§ 87(2)(b) described the officer that frisked and searched him as a white male, approximately 5'10" with brown hair and a goatee. § 87(2)(g) § 87(2)(b) said that he witnessed multiple officers frisk and search § 87(2)(b) Sgt. Memoly denied frisking and searching § 87(2)(b) and the other officers did not recall the incident. § 87(2)(g)

Undisputed Facts

It is undisputed that § 87(2)(b) had a zip-locked bag of Tums in his possession when the officers observed him. It is undisputed that when the officers approached him, § 87(2)(b) ran into the Talk of the Town Bar. It is undisputed that § 87(2)(b) was frisked. It is undisputed that § 87(2)(b) was released once the officers realized that he had Tums rather than controlled substances in his possession.

Facts in Dispute

§ 87(2)(g)

Assessment of Evidence

Though § 87(2)(b) made the initial complaint, he did not see the initial stop, the frisk or the search because he had been inside of the bar. § 87(2)(g)

PO Burdick and PO Metsopulos did not recall the incident. § 87(2)(g)

PO Danziger provided no information regarding the frisk or search that occurred because he stated he did not see it occur. PO Danziger stated that he had no involvement in the incident and provided no information concerning why § 87(2)(b) had been stopped. § 87(2)(g)

§ 87(2)(g) The officers stopped § 87(2)(b) because they observed him with a zip-locked bag containing a white substance. The zip-locked bag actually contained Tums. § 87(2)(b) ran away because he did not realize he was being approached by officers. Officers apprehended § 87(2)(b) in the Talk of the Town Bar. § 87(2)(g)

Allegation A: Sgt. Joseph Memoly stopped § 87(2)(b)

Allegation B: PO Joseph Metsopolos stopped § 87(2)(b)

Allegation C: PO Michael Burdick stopped § 87(2)(b)

Allegation D: PO Malcolm Danziger stopped § 87(2)(b)

The courts have ruled that officers are allowed to stop a person in a public place when they “reasonably suspect that a person is committing, has committed, or is about to commit a crime.” Sgt. Memoly stated that the officers stopped § 87(2)(b) after observing him with a zip-locked bag containing a white substance thought to be cocaine and a hand in close proximity to his nose. § 87(2)(b) did not dispute that he had a zip-locked bag of Tums in his possession when the officers observed him. § 87(2)(g)

it is recommended that allegations A through D be closed as exonerated.

Allegation E: Officers frisked § 87(2)(b)

It is undisputed that the officers made observations that led them to believe § 87(2)(b) was engaging in criminal activity. Specifically, they saw him engage in actions that appeared to constitute drug use. Upon approach, § 87(2)(b) fled from the officers. Sgt. Memoly stated that he and the other officers feared for their safety after § 87(2)(b) fled from them after they told him to stop. New York courts have upheld frisks where the failure to act immediately would have presented a danger to the general public. § 87(2)(g)

It has also been accepted by New York courts that when officers approach someone after having established reasonable suspicion of a crime, and the person

flees, the previously established reasonable suspicion combined with the person's flight can justify a frisk for safety (encls. 1a-2a). It is therefore recommended that allegation E be closed as exonerated.

Allegation F: Officers searched § 87(2)(b)

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It is therefore recommended that allegation F be closed as exonerated.

Allegation G: PO Joseph Metsopulos threatened to arrest § 87(2)(b)

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it is recommended that allegation G be closed as unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: